



Tammy Buchanan <tammy.buchanan@dataprotection.education>

Re: Privacy notice updates

1 message

Tammy Buchanan <tammy.buchanan@dataprotection.education>
To: Stuart Scrase <StuartScrase@coomberoad.brighton-hove.sch.uk>
Bcc: Tammy Buchanan <tammy.buchanan@dataprotection.education>

25 September 2023 at 13:55

Hi Stuart,

I have had a look through the policies that you sent, please find below some comments:

Data Protection Policy - this is not the DPE template so it is hard to directly compare, but after going through, it looks as though it has the following missing:

- DPO is not named
- The consent section is missing
- Disclosure and sharing of personal data is missing
- Under the section on DBS there is a sentence missing about the right to appeal against automated decision making such as DBS.
- The photography policy is linked with the CCTV section - these are quite different items.
- There isn't a specific statement about staff undergoing regular data protection training.
- There isn't a section on third party data processors.

For your information, our current template is here: <https://dataprotection.education/best-practice-library/documents/procedures/8-data-protection-policy>

General Privacy Notice - the title inside the document says General privacy statement rather than notice - it is a notice.

- Section on Public Health data was removed?

Privacy Notice for Pupils -

- Section on Public Health data was removed?

Record Management Policy - is a different template to DPE's. For exact retention periods I would advise comparing with those recommend by iRMS: <https://irms.site-ym.com/page/SchoolsToolkit>

Workforce Privacy Notice - has the wrong title, should be a notice not a statement.

Has hardly any of the required information such as lawful basis, why the information is collected, categories of data, why workforce information is shared. Data subject rights, concerns. I would advise reviewing our template here: <https://dataprotection.education/best-practice-library/documents/procedures/transparency/103-dpe-model-data-privacy-notice-workforce>

Just to advise a privacy notice should have the title Privacy Notice, not statement.

I hope that helps,

Many thanks,
Tammy

On Wed, 20 Sept 2023 at 16:30, Stuart Scrase <StuartScrase@coomberoad.brighton-hove.sch.uk> wrote:

Thank you Tammy

I've stuck to the templates as you suggest and produced the attached. Please can you cast your eye over them to give me the nod that they are ok?

Also, do you have a model policy for Freedom of Information requests too please.

Many thanks

Stuart

Stuart Scrase | Headteacher |
Coombe Rd Primary School | Milner Road | Brighton | BN2 4BP |
Office: 01273 077130
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From: Tammy Buchanan <tammy.buchanan@dataprotection.education>
Sent: 19 September 2023 14:06
To: Stuart Scrase <StuartScrase@coomberoad.brighton-hove.sch.uk>
Subject: Re: Privacy notice updates

Hi Stuart,

Thank you for your email. I would recommend having a look at using either the local authority templates for privacy notices, or the ones on our website which I will put below. We recommend three:

One that covers pupil data: [DPE Model Data Privacy Notice Pupils](#)
One that covers staff/workforce: [DPE Model Data Privacy Notice Workforce](#)
And a general one: [DPE Model Data Privacy Notice General](#)

The current two that you sent me do have missing information in them so would recommend using either ours or the LA's templates - they have very clear parts for modifying as generally the lawful basis, data collection requirements etc would not need changing. I would also recommend reviewing the supplier list and the data that you share with them to check no major suppliers have changed - I am aware that most Brighton schools are changing their MIS and financial package providers for example. A privacy notice should be updated when any major changes like this happen.

I would also advise that Data Protection Education is your Data Protection Office (DPO), so there is a requirement to name DPE in the privacy notices as the DPO and so would recommend doing this. It is the right of all data subjects to contact us, and as such the school has an obligation to allow people to contact us directly and not go through the school, as advised in our meeting last November. Currently you name someone else in another school?

The GDPR should now be referred to as the UK GDPR.

The local authority templates will be very similar to ours. For both I would only recommend changing those parts that suggest may need additional/changed information rather than altering the template so that you don't exclude any information that's lawfully required.

I would also advise having a look at your data protection policy which says it is due for review September 2023. We also have a template for this here:

<https://dataprotection.education/best-practice-library/documents/procedures/8-data-protection-policy>

Further help and advice for schools can now be found in our Schools and Trusts Best Practice area:

<https://dataprotection.education/best-practice-library/best-practice/schools>

I hope that helps and I look forward to seeing you soon,

Many thanks,
Tammy

On Tue, 19 Sept 2023 at 12:23, Stuart Scrase <StuartScrase@coomberoad.brighton-hove.sch.uk> wrote:
Hello Tammy

Please can you help with our privacy notice to make sure that we are compliant?

I've attached our old ones and some guidance from the local authority.

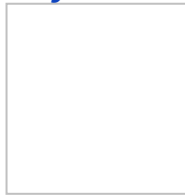
Any help you can provide would be really appreciated please.

Many thanks

Stuart

Stuart Scrase | Headteacher |
Coombe Rd Primary School | Milner Road | Brighton | BN2 4BP |
Office: 01273 077130
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2 attachments



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